

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD.,

RESPONDENT.

**STATUS REPORT AND
PROPOSED DISCOVERY SCHEDULE**

Pursuant to 46 C.F.R. §502.141(h), the April 8, 2024 Initial Order, and the April 11, 2025 Order on Motion to Dismiss (Dkt. 25), Complainant, Samsung Electronics America, Inc. (“SEA”), by its undersigned counsel, submits this status report and proposed discovery schedule.

Basis for Non-Joint Status Submission

The status report is not “joint,” as required by the Presiding Officer. On Thursday, May 22, 2025, Counsel for SEA sought to confer with Counsel for Respondent, COSCO Shipping Lines Co., Ltd. (“COSCO”), regarding preparation of a Joint Status Report pursuant to the above-referenced Orders. SEA sent COSCO an email with its preliminary draft of the joint status report and a proposed discovery schedule, as outlined in the next section. Later that afternoon, Counsel

for COSCO responded *via* email with its proposal for an alternative course of action, stating, “[i]nstead of filing a proposed procedural schedule, we propose, either jointly or separately, to file a motion proposing to defer a procedural schedule until all the parties have answered,” referring to the third-party complaint filed by COSCO.

Counsel for SEA responded promptly within the hour, advising that “[w]e will discuss your position with our client and revert.” Just past noon the following day, counsel for COSCO asked for SEA’s position by 4:00 PM EST that afternoon. SEA again responded promptly, advising that “[w]e reported COSCO’s request to SEA after your email and do not have a response yet. If SEA does not have a response yet we will send you an email with a statement to add for your meet and confer requirement,” and shortly thereafter followed up with counsel for COSCO noting that “[a]s an update, SEA is still considering the proposal internally as some of the decisionmakers are ooo [out of office] with this holiday weekend upon us and the request received only yesterday,” and asking if it “[i]s COSCO’s intention still to file by 4 pm ET or will it consider filing later today so SEA’s position is reflected?” At 3:07 PM EST, counsel for COSCO advised that “I think the longest we could possibly wait for SEA’s position is 4:40pm ET today.”

SEA advised that “[w]e will advise SEA of the 4:40 ET cutoff and see what we can get from SEA on the position,” and shortly thereafter responded further stating:

I am just off the phone with the General Counsel of SEA and he simply cannot provide an to this proposed motion because it has to be fully vetted internally and agreed. He has requested that COSCO instead file the motion tomorrow so SEA can be aligned internally and provide a thoughtful response. In considering the request to wait to file the motion tomorrow instead of by 4:40 PM today, COSCO should be mindful that it raised the proposal for the first time 24 hours ago when we reached out to address the court-mandated joint status report due Tuesday. Then, this afternoon, for the first time COSCO advises it is actually filing a motion today and we need to answer by 4 pm of a three-day holiday weekend, then extended by 40 minutes.

The reason we are laying out this process is SEA wishes to provide an actual, well considered response to a request made. If the answer was a straight out no, SEA would have provided it by now. SEA is instead weighing the implications of your motion and how best to proceed. SEA urges you to reconsider the timing of your filing.

At 4:50 PM EST, counsel for SEA advised counsel for COSCO that we had just obtained an answer from our client, and asking that counsel “[g]ive me a moment to put together an email.” No response was received, however, and minutes later counsel for COSCO served Respondent’s Motion to Defer Filing of a Joint Status Report (Dkt. 34). Respondent’s motion advances a number of arguments, including contested substantive matters in addition to procedural matters that were not discussed with counsel for SEA, in support of its motion to delay the instant Joint Status Report as well as seeking to delay the proposed schedule for proceeding with discovery.

Moreover, counsel for COSCO’s representation that it met and conferred with counsel for SEA “in compliance with the Commission’s rules” is not a forthright description of the last minute email exchanges and unilateral deadlines. More concerning, counsel for COSCO misrepresented SEA’s position on the motion, representing that “SEA has stated that it is unable to take a position at this time,” when that was not SEA’s position.

As described above, counsel for SEA specifically advised that it was coordinating with its client to provide a position, that it intended to “provide an actual, well considered response to a request made,” but in light of COSCO’s demands advised that if it could not obtain the client position in the short time frame requested that it would provide COSCO “with a statement to add for your meet and confer requirement.” Counsel for SEA in fact obtained SEA’s position that afternoon and asked counsel for COSCO for a few minutes to provide it, but COSCO filed its response minutes later. In regard to COSCO’s motion filed on May 23, 2025, SEA advises that it will respond to the motion in the appointed time set forth in the Rules of the FMC. SEA intends to

oppose the motion and SEA is considering the matter further in light of the positions made in COSCO's motion.

With regard to the foregoing Status Report, COSCO has not responded further to SEA's draft or its request to meet and confer. Mindful that COSCO's motion does not stay or extend the Orders requiring a Joint Status Report, and at the time of SEA's submission of this Status Report there is no order from the Presiding Officer on COSCO's motion, SEA is proceeding with meeting its obligations and filing the foregoing in an attempt to materially comply with the Orders.

Substantive Status Report Particulars

Initial Disclosures. The Parties have made their Initial Disclosures.

CADRS. SEA has participated in a preliminary conference with CADRS as required by the Initial Order. SEA met with CADRS on May 21, 2025. At the time of SEA's preliminary conference with CADRS, our understanding was that COSCO had not yet met with CADRS, but SEA does not otherwise have updated information with respect to COSCO's engagement with CADRS.

Discovery Schedule. SEA submits the following proposed discovery schedule:

Event	Deadline
Service of Requests for Production and Fact Interrogatories	June 3, 2025
Complete Document Production	July 14, 2025
Complete Fact Depositions	August 25, 2025
Expert Discovery Phase Begins	August 25, 2025
Completion of All Discovery	October 9, 2025

The above schedule complies with completing discovery within the 150-day statutory limit, as further supported in the Initial Order. However, SEA provides the following observations as to the feasibility of supporting a proper record for the Presiding Officer, let alone the Commission, within the standard, statutory period.

SEA anticipates that the proposed 150-day discovery schedule in accordance with 46 CFR § 502.141(g), as outlined above, will not provide sufficient time to complete discovery. More specifically, SEA is concerned that, in light of the substantial volumes of data and information that are available in electronically-stored information (“ESI”) and the potential number of custodians whose data must be searched, the SEA (and we assume COSCO) are likely to require additional time to undertake a fulsome review of ESI and to produce same. SEA also anticipates that volume of the allegations, which include over 22,000 allegedly improper charges, will give rise to delays in completing discovery.

Furthermore, the discovery process is likely to be significantly hampered by the necessity of collecting and translating documents prior to or after production. Moreover, it is anticipated that COSCO depositions may be undertaken either overseas or on a schedule that permits witnesses and counsel to conduct depositions in more than one session per witness in light of time differences between China and the U.S. East Coast.

Notwithstanding the concerns outlined above, SEA has proposed a schedule in compliance with the Commission’s rules and will undertake discovery efforts in light of achieving same. Finally, SEA proposes that a further status update be provided to the Presiding Officer no later than July 1, 2025 to advise the status of discovery.

Dated: May 27, 2025

Respectfully Submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on this date, May 27, 2025, this Response was served upon the Federal Maritime Commission and the following via electronic mail:

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